

HOUSE BILL 1857

By Rudd

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 1; Title 49, Chapter 2; Title 49, Chapter
50 and Title 49, Chapter 6, relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 10, is amended by adding the following as a new section:

(a) The general assembly finds and declares that:

(1) The Fourth of July commemorates the founding of the United States of America and the adoption of the Declaration of Independence;

(2) It is important for students to understand the historical significance of the Fourth of July and the constitutional foundations and civic principles upon which this great nation was established; and

(3) Because the Fourth of July occurs during the summer months when school is not in session, students should receive specialized instruction during the school year on the Fourth of July.

(b) Each director of schools for an LEA and each director of a public charter school shall annually designate for the LEA or public charter school one (1) instructional day each school year to observe the Fourth of July by providing students enrolled in any of the grades kindergarten through twelve (K-12) with age- and grade-appropriate instruction on the founding of the United States, the separation of the original thirteen (13) colonies from Great Britain, the Declaration of Independence, the United States Constitution, and the fundamental rights and freedoms enjoyed by American citizens.

(c) Each LEA and public charter school shall determine the instructional program and methods used to provide the instruction required in this section, including, but not limited to, designing and implementing interactive classroom lessons, readings, writing assignments, and discussions, or conducting school assemblies. The instruction provided by an LEA or public charter school on the day of observance of the Fourth of July must accomplish the grade-specific objectives in subsection (d).

(d) The objectives of the instruction provided pursuant to this section are to:

(1) Introduce the foundational concepts of American independence to students in grades kindergarten through five (K-5) to ensure students can:

(A) Explain the meaning of the Fourth of July;

(B) Identify the United States as an independent nation;

(C) Describe the basic ideas of freedom and individual rights; and

(D) Recognize the national symbols of the United States and their connection to American freedom and independence;

(2) Emphasize the historical context of the Fourth of July and establish a civic understanding for students in grades six through eight (6-8), which may be accomplished through the social studies curriculum, to ensure students can:

(A) Describe the events that led to America gaining its independence from Great Britain;

(B) Explain the reasons for why the thirteen (13) original American colonies sought self-governance;

(C) Summarize the purpose and significance of the Declaration of Independence and the United States Constitution; and

(D) Identify the foundational civic principles of liberty, individual rights, limited government, and consent of the governed; and

(3) Focus on analysis of foundational texts and civic themes for students in grades nine through twelve (9-12), which may be accomplished through the English language arts curriculum, to ensure that students can:

(A) Analyze the Declaration of Independence and the United States Constitution as foundational American texts;

(B) Identify key themes of the American Revolution, including, but not limited to, liberty, equality, and natural rights;

(C) Evaluate the historical and philosophical significance of American independence; and

(D) Understand the connection our founding American principles have to modern civic responsibilities and American citizenship.

(e) Each director of schools for an LEA and each director of a public charter school shall:

(1) Annually designate the day of observance required in subsection (b);

(2) Ensure consistent implementation of this section at each school in the LEA or at the public charter school;

(3) Verify that the instruction provided to students at each public school in the LEA or at the public charter school for purposes of this section complies with the requirements of this section and is aligned to the relevant state academic standards adopted by the state board of education if the instruction is being provided as part of a social studies or English language arts class; and

(4) Provide guidance as needed to support the implementation of this section at each public school in the LEA or at the public charter school.

(f) The instruction provided to students pursuant to this section must be nonpartisan and solely educational in nature. The focus of the required instruction must,

at all times, be on historical facts, the content of the founding documents, and the civic principles underlying the creation of the founding documents and of the United States.

(g) Each LEA and public charter school shall periodically review the content, materials, and instructional methods used to provide the instruction required in this section and update the same as the LEA or public charter school determines appropriate to ensure best practices in civic education are implemented and to ensure that any instruction provided as part of a social studies or English language arts class is aligned to the relevant state academic standards adopted by the state board of education.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.